

cials should be free of the obligation to answer for their acts in court. Running through our cases, with fair consistency, is a "functional" approach to immunity questions other than those that have been decided by express constitutional or statutory enactment. Under that approach, we examine the nature of the functions with which a particular official or class of officials has been lawfully entrusted, and we seek to evaluate the effect that exposure to particular forms of liability would likely have on the appropriate exercise of those functions. Officials who seek exemption from personal liability have the burden of showing that such an exemption is justified by overriding considerations of public policy, and the Court has recognized a category of "qualified" immunity that avoids unnecessarily extending the scope of the traditional concept of absolute immunity. See, e. g., *Scheuer v. Rhodes*, 416 U. S. 232 (1974); *Butz v. Economou*, 438 U. S. 478 (1978); *Harlow v. Fitzgerald*, 457 U. S. 800 (1982).

This Court has generally been quite sparing in its recognition of claims to absolute official immunity. One species of such legal protection is beyond challenge: the legislative immunity created by the Speech or Debate Clause, U. S. Const., Art. I, § 6, cl. 1. Even here, however, the Court has been careful not to extend the scope of the protection further than its purposes require. See, e. g., *Gravel v. United States*, 408 U. S. 606, 622-627 (1972); see also *Hutchinson v. Proxmire*, 443 U. S. 111, 123-133 (1979); *Doe v. McMillan*, 412 U. S. 306 (1973); *United States v. Brewster*, 408 U. S. 501 (1972); *United States v. Johnson*, 383 U. S. 169 (1966); *Kilbourn v. Thompson*, 103 U. S. 168 (1881). Furthermore, on facts analogous to those in the case before us, the Court indicated that a United States Congressman would not be entitled to absolute immunity, in a sex-discrimination suit filed by a personal aide whom he had fired, unless such immunity was afforded by the Speech or Debate Clause. *Davis v. Passman*, 442 U. S. 228, 246 (1979); see also *id.*, at 246, n. 25 (reserving question of qualified immunity).